

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Bell	Team: Team # 6	CCRB Case #: 200104707	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Sunday, 06/10/2001 9:15 PM	Location of Incident: Courtyard of § 87(2)(b)	Precinct: 41	18 Mo. SOL 12/10/2002	EO SOL 12/10/2002	
Date/Time CV Reported Fri, 06/15/2001 9:57 AM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Fri, 06/15/2001 1:10 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officer			
2. POF Marytheresa Milillo	02586	890555	PBBX TF
3. POM Edwin Sepulveda	00744	902398	PBBX TF
4. Officers			
5. CPT Michael Pilecki	00000	880208	TRF CD
6. POM Pedro Mendez	24042	904562	PBBX TF
7. POM Daniel Panissidi	29638	904743	PBBX TF

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Martin Torres	08480	916815	PBBX TF
2. POM Thomas Pearce	30708	886270	PBBX TF
3. POM Orlando Rivera	25912	898391	PBBX TF

Officer(s)	Allegation	Investigator Recommendation
A. Officer	Force: An officer used physical force against § 87(2)(b)	§ 87(2)(b)
B.POF Marytheresa Milillo	Force: Police Officer Marytheresa Milillo pushed the stroller belonging to § 87(2)(b)	§ 87(2)(b)
C. Officer	Force: An officer used physical force against § 87(2)(b)	§ 87(2)(b)
D.POM Edwin Sepulveda	Force: Police Officer Edwin Sepulveda used physical force against § 87(2)(b)	§ 87(2)(b)
E.CPT Michael Pilecki	Force: Capt. Michael Pilecki used physical force against § 87(2)(b)	§ 87(2)(b)
F. Officer	Force: An officer struck § 87(2)(b) with a nightstick.	§ 87(2)(b)
G. Officer	Force: An officer used pepper spray against § 87(2)(b)	§ 87(2)(b)
H.POF Marytheresa Milillo	Force: Police Officer Marytheresa Milillo used pepper spray against § 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
I.POM Daniel Panissidi	Force: Police Officer Daniel Panissidi used physical force against § 87(2)(b)	
J.POM Edwin Sepulveda	Force: Police Officer Edwin Sepulveda used physical force against § 87(2)(b)	
K. Officers	Force: Officers used physical force against § 87(2)(b)	
L.POM Pedro Mendez	Force: Police Officer Pedro Mendez tightly handcuffed § 87(2)(b)	

Synopsis

On the evening of June 10, 2001, there was an informal, unplanned gathering of revelers in the vicinity of § 87(2)(b). In response, Patrol Borough Bronx Task Force was called to a level one mobilization in the area. Initial efforts to clear § 87(2)(b) and the adjoining side streets were unsuccessful. After the incident from which the allegations in this case stem, which took place in front of § 87(2)(b) a level two mobilization was called, due to a perceived lack of manpower. Later in the evening, a level four mobilization was called so as to draw manpower from other boroughs. In total, 42 arrests were made, § 87(2)(b).

On the evening of the mobilization, § 87(2)(b) and numerous members of his extended family were in front of § 87(2)(b) where they reside. At approximately 9:15 PM, officers approached § 87(2)(b) and the others and informed them that they had to go inside of their building. Nearly all family members disputed the officers' commands. When Officer Marytheresa Milillo of Bronx Task Force moved to arrest § 87(2)(b) a melee ensued in which numerous arrests were made. § 87(2)(b) and his relatives made complaints about the use of pepper spray, being struck with nightsticks, and general physical force. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Summary of complaint

§ 87(2)(b) was interviewed on August 2, 2001, at his apartment at § 87(2)(b). At the time of his interview, § 87(2)(b).

On June 10, 2001, § 87(2)(b) was in front of his building, § 87(2)(b) at which time several police officers in riot gear came down the street and told everyone to get off of the sidewalk. § 87(2)(b) and several of his neighbors that reside in his building proceeded into the courtyard of the building, which is approximately 30 feet back from the sidewalk. Once back from the sidewalk, § 87(2)(b) started videotaping what was going on. According to § 87(2)(b) several people, including a woman named § 87(2)(b) were yelling at an officer, saying that they did not have to go into their building, because the courtyard was part of the building, and that they were not on the sidewalk. As the people remained in the courtyard, and § 87(2)(b) continued to yell, several officers entered the courtyard and started "rushing" everybody. § 87(2)(b) stated that everyone was backing up toward the building prior to the officer's entry into the courtyard.

As the officers entered the courtyard, a woman named § 87(2)(b) who was § 87(2)(b)'s daughter, had her baby in a baby stroller in the front of the courtyard of the building, next to two plant stands. According to § 87(2)(b) a female officer with blonde hair, glasses and blue eyes, grabbed the stroller and forcefully pushed it with the baby in it. § 87(2)(b) asserted that if the baby had not been strapped in, the baby would have fallen out of the stroller. At the same time, several officers in riot gear entered the courtyard and started to push the crowd. § 87(2)(b) reported that the officers formed into a line, and walked in like an indestructible wall. He also stated that there was one officer in a white shirt that appeared to be leading the other officers in riot gear. § 87(2)(b) recounted that as the officers moved everyone back, another officer he did not describe grabbed § 87(2)(b) by both his shoulders and biceps and began tossing him from the left to the right. This same officer then either began to reach for the camcorder that § 87(2)(b) was holding, or attempted to strike him. § 87(2)(b) could not

determine the officer's intention. § 87(2)(b) explained that when the officer reached for him he weaved back and forth and backed up further, in an attempt to not allow the officer to touch him. On the third attempt, the officer hit § 87(2)(b)'s camcorder, causing the camcorder to strike § 87(2)(b) in the eye. § 87(2)(b) stated that this was extremely painful, and he believed that he was going to get a black eye. § 87(2)(b) stated that at this point he became angry, stopped recording and ran upstairs to the fifth floor of his apartment building, where his apartment is located. Once on the fifth floor § 87(2)(b) then continued to record the incident, and saw that the officers were "still beating on people."

§ 87(2)(b) stated that although he did not see § 87(2)(b) get pepper sprayed, he did see her on the floor of the courtyard with police on top of her. This occurred prior to § 87(2)(b) returning to his building. He later heard from her that she had been pepper sprayed "all over her body." Additionally, § 87(2)(b)'s son, whose name was not provided, was struck in the legs with a nightstick, and sustained several bruises from the blow. Another man named § 87(2)(b) was on the floor as well, with police on top of him.

* After § 87(2)(b)'s statement was taken, he failed to cooperate with this investigator. After repeated promises to assist in getting a copy of his videotape, a field trip was made to his house. After knocking on his door and identifying oneself as CCRB, § 87(2)(b) was quoted as saying "I'm too fucked up to talk with these guys". When § 87(2)(b) answered the door, he appeared to be under the influence of drugs, and said that he could not turn over his video. He said that he would come to CCRB the next day to assist in making a copy of the tape, but he failed to ever appear. § 87(2)(g) § 87(2)(h)

Civilian Statements

§ 87(2)(b) was interviewed on July 7, 2001, at her Bronx residence. § 87(2)(b) is a friend of § 87(2)(b)

On June 10, 2001, at approximately 9:15 PM, § 87(2)(b) had just returned to § 87(2)(b) from a picnic. § 87(2)(b) was accompanied by her friend § 87(2)(b) (last name not provided). When the car stopped, § 87(2)(b) unloaded the strollers, the grill and other items from the car. § 87(2)(b) stated that when she arrived home there were several people outside of the building, which is located on the corner of § 87(2)(b) and § 87(2)(b). At this time, § 87(2)(b) saw several officers in riot gear coming from § 87(2)(b) toward her building, and they were telling everyone to get off of the street. § 87(2)(b) pushing her baby carriage with her, moved into the courtyard of § 87(2)(b). Her sister in law, § 87(2)(b) and mother § 87(2)(b) were behind her. § 87(2)(b)'s brother, § 87(2)(b) was also behind her, and also was with a baby carriage.

As § 87(2)(b) was entering the courtyard she heard her mother and brother, § 87(2)(b) arguing with someone. § 87(2)(b) stopped, turned around and saw that there were at least ten officers in riot gear standing by the entrance of the building. The officers were telling all of the civilians gathered in front "Get off the sidewalk." Also at this point, she saw a female officer push § 87(2)(b)'s baby carriage, which had his baby inside. In response her brother asked, "What are you doing?" § 87(2)(b) then tried to pull § 87(2)(b) away from the officer. At this point civilians began running into the courtyard and into the building. § 87(2)(b) in order to protect her baby, tried to cover her baby carriage with her body. As people were pushing, a white male officer, whom she believed to be a sergeant because of his white shirt, covered § 87(2)(b) with his body. When § 87(2)(b) pleaded for nothing to happen to her daughter, the sergeant replied "I'm not going to let anything happen to your daughter." At this time, the same officer who was covering § 87(2)(b) tried to grab § 87(2)(b)'s friend § 87(2)(b) although the officer did not catch him. § 87(2)(b) also saw two white male officers on

top § 87(2)(b) who were placing him on the ground and were putting him in plastic handcuffs. Since she had been on top of her daughter, § 87(2)(b) did not know how her brother came to be lying on the ground. At the same time, another white male officer, who because of his shirt § 87(2)(b) thought was a sergeant, grabbed § 87(2)(b) and escorted her and her daughter across the street, to § 87(2)(b). During the time that she was being led across the street, § 87(2)(b) saw § 87(2)(b) being led to a prisoner van, and saw that § 87(2)(b) had already been placed inside. After this, she saw her uncle, § 87(2)(b) who had also been at the picnic, being led to the prisoner van.

When § 87(2)(b) was led across the street, she saw a very short female officer pepper-spray her mother, § 87(2)(b) directly in the face. § 87(2)(b) § 87(2)(b) asserted that she thought that the female officer sprayed her mother directly because her face was so red and she was so effected by the pepper spray. As the female officer was spraying, § 87(2)(b) § 87(2)(b) mother just fell backwards. When § 87(2)(b) saw this, she yelled to officers in the area “Attend to my mother!” § 87(2)(b) § 87(2)(b) little brother, § 87(2)(b) and his girlfriend, § 87(2)(b) then came out from the building and checked on their mother. § 87(2)(b) § 87(2)(b) said that the police offered no help to her mother “They just left her there”. Officers then came from the direction of § 87(2)(b). These officers then let § 87(2)(b) proceed to try wake his mother up. § 87(2)(b) § 87(2)(b) said that the EMT’s then came and put her mother on a stretcher, while they were pumping oxygen into her mouth. § 87(2)(b) § 87(2)(b) maintained that since she has a weak heart –due to a heart murmur– her heart stopped when she was pepper sprayed. § 87(2)(b) asserted that the officers had to administer CPR.

§ 87(2)(b) § 87(2)(b) spoke to her uncle, § 87(2)(b) § 87(2)(b) later that night and he told her that when he was exiting the building, he saw that officers were outside. When he saw this, he turned around and went back inside and the officers told him to stop. He said that the officers then hit him, which resulted in a blood clot in his back. He went to the hospital for the blood clot. § 87(2)(b) was issued a summons for § 87(2)(a) 160.50

§ 87(2)(b) was interviewed on August 2, 2001, at his Bronx residence. § 87(2)(b) is the husband of § 87(2)(b) and is the son of § 87(2)(b) and § 87(2)(b)

On the evening of June 10, 2001, § 87(2)(b) was coming from a picnic with his family. When he arrived back at his residence, located at § 87(2)(b) § 87(2)(b) first saw that his wife, § 87(2)(b) was standing outside of the building with their baby, § 87(2)(b) § 87(2)(b). At the same time, § 87(2)(b) saw that officers in riot gear were forming a line in the street by the corner of § 87(2)(b) and § 87(2)(b). These officers started to walk up the street coming towards where he was standing. Approximately five or six officers in riot gear then approached where § 87(2)(b), § 87(2)(b) and § 87(2)(b) s mother, § 87(2)(b) were standing. There were also other officers standing in the background, watching what was happening. One of the officers, who § 87(2)(b) described as being a white male in a white shirt, told the group that they had get away from the front of the building because there were too many people around. § 87(2)(b) who was standing to § 87(2)(b) s right side, then approached the officers and told them that they did not have to move since they lived in the building. The officer told § 87(2)(b) that she had to go into the building, and she told him again that they lived there.

While the officers were talking with § 87(2)(b) there was a female officer, who had two male officers standing next to her, speaking with § 87(2)(b). § 87(2)(b) § 87(2)(b) said that he was paying more attention to this conversation than to the one with his mother, § 87(2)(b). The female officer told § 87(2)(b) that she had to go inside of the building, to which § 87(2)(b) responded that she would not because she had been standing in front of the building for a while. The female officer then told one of the male officers standing next to her to arrest § 87(2)(b). The first officer hesitated in doing this, so a white male officer in a white shirt, who § 87(2)(b) referred to as a sergeant then came up to § 87(2)(b) and pushed

her stroller, while the female officer grabbed § 87(2)(b). § 87(2)(b) then came over to the sergeant who pushed the stroller, and “I pushed his hand down so he could stop pushing my stroller”. The sergeant then rushed § 87(2)(b) while trying to grab him telling him “come over here.” § 87(2)(b) explained that as the sergeant did this, he was pushing his hands away, and trying to get away from him. The sergeant then rushed him into the wall. § 87(2)(b) said that the Sergeant had his right arm around his head, while he was grabbing his left arm. § 87(2)(b) had his back on the wall at this time and was trying to get away. He also thought that the Sergeant was trying to slam him to the floor at this time. § 87(2)(b) s mother then came over and interceded, at which time the sergeant let § 87(2)(b) go. § 87(2)(b) then started to rush more to the front of the building where his wife was, but when he lifted his head to move, he was hit in the head with a nightstick on the top left side of his head. When he was hit, “I threw myself to the floor” but while going down, he was pepper sprayed on his neck. When he was on the floor, an officer tightly handcuffed § 87(2)(b) with the plastic cuffs. § 87(2)(b) was then lifted up and brought to a bus.

§ 87(2)(b) stated that while he was on the bus, somebody turned the heat on, which § 87(2)(b) said made the pepper spray hurt more. He said that he was banging his head on the seat in front of him because it hurt so much. § 87(2)(b) stated that while he was doing this, somebody opened the window next to him so he could get some air. He was then taken to the 43rd precinct for processing. Following his release, he sought treatment at § 87(2)(b) for a bump to his head and scratches over his body.

Photo Array (enc. 8)

§ 87(2)(b) was shown eighty-six photographs on February 27, 2002. These officers were all of those who responded to the mobilization from Patrol Borough Bronx Task Force.

§ 87(2)(b) chose three officers:

He chose the officer in photo number one, who is Sgt. William Kotsoupis. § 87(2)(b) said that this officer put him into the prisoner van.

§ 87(2)(b) chose the officer pictured in photo number two, who is Officer Patrick Leahy. § 87(2)(b) thought that this officer was the partner of the female blonde officer. He also thought that this officer was the one who had ordered the female officer to arrest § 87(2)(b).

§ 87(2)(b) chose the officer pictured in photo number fifty-five, who is Officer Albert Vazquez. § 87(2)(b) stated that this was one of the officers who rushed the vestibule. He thought that he could have been one of the officers who had put a knee in his back, but he also asserted that this officer had no physical contact with him.

§ 87(2)(b)

§ 87(2)(b) made her first statement in written form on her civilian complaint report, which was prepared on June 10, 2001.

On the evening of June 10, 2001, § 87(2)(b) was downstairs, in front of her building at § 87(2)(b) with her infant daughter. Her husband, § 87(2)(b) had just arrived back in the car with members of his family. § 87(2)(b) had come down because she was expecting her family to arrive at the time. § 87(2)(b) stated that at this time, there was a riot on § 87(2)(b) with many civilians in the street yelling “Boricua”.

While the family was getting out of the car, § 87(2)(b) saw that there was a group of police officers—she said that there were at least seven—approaching where they were standing. § 87(2)(b) thought that there were two officers with white shirts, while the rest were in “turtle suits”. § 87(2)(b)

thought that when they approached, they had their pepper spray out. While § 87(2)(b) stood next to her, one of the white-shirted officers told her “You can’t be on the sidewalk”. When § 87(2)(b) asked why this was, he responded “You don’t see that there’s a little tiny riot over there.” § 87(2)(b) then told him that the riot was over there, and besides, they were just screaming, not rioting § 87(2)(b) did not specify where this was happening). The sergeant then told her that she had to go back upstairs. § 87(2)(b) in turn stated that she would just be a minute because she had to get her stroller. He then told her she had to move fast, and § 87(2)(b) said she would just be a second. The sergeant with whom § 87(2)(b) was speaking then told a female officer to “lock her up”. The female officer then hesitated for a second, and another male officer, who was standing to § 87(2)(b)s right side, then approached § 87(2)(b) grabbed her right arm and then tackled § 87(2)(b) to the floor. The officer then put his knee into her back and placed the plastic handcuffs on her. § 87(2)(b) also said that while she was going to the floor, she was pepper sprayed on her face, neck and back. Once § 87(2)(b) was handcuffed, she was put in a van with her husband and her father in law.

While waiting to be transported to the precinct, § 87(2)(b) memorized the shield numbers of officers that were in the area, from looking at both their helmets and shields. § 87(2)(b) memorized the numbers 2586, 69382, 744, and 11114. § 87(2)(b) stated that the officer with shield number 744 was the female officer. § 87(2)(b) was then taken to the precinct, issued a summons, and released.

§ 87(2)(b) wrote down the shield numbers of some of the officers that arrested her; 2586, 69382, 744 and 11114. She said that she had first memorized it from the numbers on their badges and helmets, while she was sitting on the bus waiting to be taken to the precinct.

Photo Array (enc. 10)

§ 87(2)(b) was shown eighty-six photographs February 27, 2001. These officers were all of those who responded to the mobilization from Patrol Borough Bronx Task Force.

§ 87(2)(b) chose the officer pictured in photograph number one, who is Sgt. William Koutsoupis. § 87(2)(b) asserted that she saw this officer standing around. She recalled that he had pepper-spray in his hand, although she did not see him use it.

§ 87(2)(b) chose the officer pictured in photograph number twelve, who is Officer Pedro Mendez. § 87(2)(b) asserted that while on the prisoner bus, when she told him that her handcuffs were too tight, he told her to turn around and then tightened them even more.

§ 87(2)(b) chose the officer pictured in photograph number twenty-two, who is Officer Edwin Sepulveda. § 87(2)(b) thought that this was the officer with shield number 744, and that he was the one who had placed her in handcuffs. § 87(2)(b) also maintained that it was this officer who had brought her to the ground.

§ 87(2)(b) chose the officer pictured in photograph number thirty, who is Officer Daniel Pannissidi (this is also the officer on § 87(2)(b)s summons). § 87(2)(b) stated that this officer was in the vestibule for the entire altercation.

§ 87(2)(b) was interviewed at his residence on August 3, 2001. § 87(2)(b) is the husband of § 87(2)(b) and the father of § 87(2)(b) and § 87(2)(b). § 87(2)(b) § 87(2)(b) for the § 87(2)(b)

On the evening of June 10, 2001, at approximately 8:30 PM, § 87(2)(b) and his family arrived back at § 87(2)(b) after walking back from Crotona Park, where they had had a picnic. When

they arrived back, § 87(2)(b) helped his daughter bring her stroller into the house. While he was helping his daughter with a stroller, approximately six police officers approached § 87(2)(b) and his family. A male officer came to § 87(2)(b) while § 87(2)(b) was approximately halfway through the corridor that leads from the street to the courtyard of his building. § 87(2)(b) said that the officers started pushing everyone when they first entered the corridor. § 87(2)(b) said that the officers pushed him like it was a football drill. The first officer to push him was a male with the badge number 744, which he ascertained from the shield on his chest, and who he described as being a husky Hispanic male. While this officer was pushing him, § 87(2)(b) was trying to explain to him, in a calm tone of voice, that he was just trying to bring the strollers up the stairs since the elevator was not working. § 87(2)(b) also said that officer 744 was staring at him the whole time. Officer 744 then told “I want you and I’m coming back for you.” After officer 744 pushed § 87(2)(b) a few times, the rest of the officers charged and shoved § 87(2)(b) to the ground, where he landed face up. While § 87(2)(b) was being pushed, he felt what he thought was a hit from a nightstick to the right side of his ribcage. § 87(2)(b) said that he could not be sure whether or not he was hit by a nightstick, although he did feel a pain in his right ribs while he was being tackled to the ground. § 87(2)(b) said that he had no visible injury from that hit. When asked how many times he was hit before he hit the ground, § 87(2)(b) said that it was mostly pushing, although he thought that he was probably hit once.

While on the ground, officers placed § 87(2)(b) in plastic handcuffs. Following that, they brought him to a bus that was waiting outside, and then took him to the 43 Precinct. On § 87(2)(b), § 87(2)(b) went to § 87(2)(b) to seek treatment for pains to his neck, his ribs and his back.

Photo Array (enc. 12)

§ 87(2)(b) was shown eighty-six photographs on February 27, 2002. These officers were all of those who responded to the mobilization from Patrol Borough Bronx Task Force.

§ 87(2)(b) chose the officer pictured in photograph number 22, who is Officer Edwin Sepulveda. § 87(2)(b) recounted that this was the officer who was pushing him like a football player. He said that this officer would not listen when he tried to tell him that he was taking his daughter-in-law’s stroller into the building. § 87(2)(b) also alleged that this officer hit him in the neck with a nightstick and told him “I want you and I’m coming back for you”.

§ 87(2)(b) chose the officer pictured in photograph 21, who is Officer Marytheresa Milillo. § 87(2)(b) stated that he was not completely sure that the officer in the photograph was the officer that he was thinking of. He said that this officer was the one who was pushing § 87(2)(b) while she was on the ground.

§ 87(2)(b) was interviewed on August 2, 2001, at her residence. § 87(2)(b) is the wife of § 87(2)(b). At the time of her interview, § 87(2)(b) § 87(2)(b)

On the day of June 10, 2001, § 87(2)(b) was at a picnic with her family during the day. When they arrived home to § 87(2)(b) between 9:15 PM and 9:30 PM, § 87(2)(b) first went to get a beer at the corner store. After getting her beer, she came back to her apartment building and told everyone that was standing in front of the building “Let’s go upstairs” since she figured that there were going to be problems, since she saw many officers in “turtle suits”. She saw that these officers were coming from § 87(2)(b) and were walking on to § 87(2)(b). When § 87(2)(b) came back to the front of her building, she also saw § 87(2)(b) her son’s wife, standing with her baby. At that time, she said “come on § 87(2)(b) to which § 87(2)(b) said “hold on a second”. § 87(2)(b) said that she said this because she had to turn her baby carriage to be able to get into the building. At the time, she saw a tall

white male officer in a turtle suit push § 87(2)(b) and her baby. § 87(2)(b) son § 87(2)(b) then went to the officer who pushed § 87(2)(b) and said “What are you doing,” although he did not have any physical contact with the officer. According to § 87(2)(b) this officer then grabbed § 87(2)(b) with both hands and “banged him against the gate” that was in the portico. After the Officer put him against the gate, § 87(2)(b) went and covered her son’s face with her hands and her arms. While she was doing this, § 87(2)(b) was telling the officer “What are you doing?” At this time, the male officer pushed § 87(2)(b) and then a blonde female officer pulled § 87(2)(b) off of her son by her right arm and § 87(2)(b) turned and faced this officer. When § 87(2)(b) turned, she was pepper sprayed in the eyes by the female officer. § 87(2)(b) stated that this officer’s badge number was 744, which § 87(2)(b) had told her]. When this happened, she could not see anything and she fell to the ground on her back. The next thing that she remembered, she woke up in the emergency room, and was with her son § 87(2)(b).

Member of Service Interviews

Police Officer Edwin Sepulveda (shield number 744)

Officer Sepulveda, shield 744, was interviewed on August 15, 2001. On August 15, 2001, Officer Sepulveda was assigned to Patrol Borough Bronx Task Force, and was partnered with Officer Molillo.

Officer Sepulveda initially was assigned to a detail at Orchard Beach. He left Orchard Beach at approximately 7:30 PM, and was mobilized § 87(2)(b) and § 87(2)(b). The mobilization point was § 87(2)(b) and § 87(2)(b) but Officer Sepulveda arrived at § 87(2)(b) and § 87(2)(b), where Capt. Pilecki organized a line formation from one side of § 87(2)(b) to the other. Capt. Pilecki gave orders to the officers to get everyone off of the street. The officers were not to let anyone get past them and to tell everyone to clear the street; if people refused to move, they were to be arrested. The line, which Officer Sepulveda estimated to be seventy officers across, then started to walk in the direction of § 87(2)(b). When they reached § 87(2)(b), the line would turn around and come back towards § 87(2)(b).

When the line started to walk –Officer Sepulveda was unsure of at what time this happened– Officer Sepulveda said that they were telling people to go home. He claimed that many people had video cameras and were writing down the shield numbers of officers. Officer Sepulveda did not recall going on § 87(2)(b) since he was not that familiar with the area. While they went down § 87(2)(b), the line would go about twenty to thirty feet into each side street, since their orders were to move people a quarter of a block back.

Officer Sepulveda explained that at times, it would be necessary to clear hallways. The orders in regards to this were to tell people that if they did not live in the building, to have them go down the block, or if they did live in the building, to have them go into their apartments. He said that they were authorized to arrest anyone who did not go into their apartment or leave the hallway. On one street, the name of which Officer Sepulveda does not remember, Captain Pilecki directed the officers on the end of the line, including himself, to clear out a group of people who were standing in front of their building and to tell them to go to their apartments. Officer Sepulveda thought that there were between ten and fifteen people in front of the building; he recounted that they were male and female and that they were of all different ages.

When Officer Sepulveda got to the building, he and the other officers started to tell everyone to go into their apartments. Some of the people responded “This is my neighborhood. What are you doing here? We’re just trying to have fun.” Officer Sepulveda, along with other officers, then told them again to get off of the block. When the people did not move, he and the other officers attempted to shepherd the

people by putting a hand on them and trying to move them, although not pushing them. After this was done, most of the people moved to the back of the hall and to their apartments, while some of others did not. Those who did not move were at this point arrested. One particular man, who Officer Sepulveda explained as wearing a white t-shirt and having a stocky build, kept trying to come back out. Officer Sepulveda kept telling him to go inside and that the night was over, and was also putting his hand on him and trying to shepherd him in the direction of the courtyard. This man never told Officer Sepulveda that he was trying to bring strollers inside of the building. When he refused to go inside, Officer Sepulveda put two hands on him and tried to push him [Officer Sepulveda first said he pushed, but then he explained that he did not push but just put his hands on him in an effort to get him to move]. When he still refused to move, he took out his cuffs, and moved in to arrest him. Officer Sepulveda explained that at this time, he was in the hallway area of the vestibule. The man then started to run towards the open-air courtyard of the building, which was away from Officer Sepulveda. At exactly the same moment, the other officers saw Officer Sepulveda take out his cuffs and then started to run after the man. Officer Sepulveda then went after him and he grabbed him with one arm by either his shoulder or his arm (at this time the man was standing up). The other officers came after him and knocked in to Officer Sepulveda, who hit the wall and then went to the ground on one knee. At the same time, pepper spray from one of the officers hit Officer Sepulveda in the arm and in the face. Officer Sepulveda maintained that he never struck anyone in the vestibule.

Police Officer Marytheresa Molillo (shield number 02586)

Officer Molillo, shield number 02586, was interviewed on August 28, 2001. On June 10, 2001, Officer Molillo was assigned to Patrol Borough Bronx Task Force.

On June 10, 2001, Officer Molillo and the officers in her van, after being stationed at Orchard Beach, were directed to mobilize to § 87(2)(b) and § 87(2)(b). At the mobilization point, officers were directed to form a line across § 87(2)(b), stretching from building to building, and clear the street of people. She also explained that there were numerous white-shirted officers, although there was not one specific one directing the line. At this time, bottles were being thrown at the officers, although she was not hit by any.

Officer Molillo, who was in the line, proceeded onto § 87(2)(b). In front of § 87(2)(b) Officer Molillo saw what she described as being a large crowd of people. Between twenty and twenty-five officers came off of the line, after being directed by Capt. Pilecki, and went to the front of the building. Capt. Pilecki told the people in front of this building to move inside since there were bottles being thrown, but the people refused. Capt. Pilecki then asked the people to move inside again, telling them that it was dangerous outside. At this point, some people went inside, but approximately 30 to 40 still remained in front of the building. Capt. Pilecki then explained to them one more time to go inside. Officer Molillo went over to a thin, black or dark skinned Hispanic female who was standing to the right of the vestibule in front of the building. Officer Molillo told her “Please ma’am, go inside. You have a baby with you.” The woman then said “I don’t have to go inside.” Capt. Pilecki, who was standing to Officer Molillo’s left side, then asked the woman to go inside, and she once again refused. A man then “jumped” out of the crowd and told Officer Molillo and Capt. Pilecki, “That’s my wife, you can’t tell her what the fuck to do”. As this man jumped towards the officers, with his arms outstretched, it became apparent to Officer Molillo that he was going for Capt. Pilecki. From the corner of her eye, Officer Molillo saw Capt. Pilecki then put his arms up to protect himself, and the two began to wrestle into the vestibule of the building. Officer Mollilo explained that during this time, Capt. Pilecki was being defensive in this maneuver. Officer Molillo then stepped around the baby carriage, which was in front of her left leg, and moved to keep the crowd away from the Captain. At this time, there were other officers to her right and left holding the crowd back. Officer Molillo recounted that people from the crowd were trying to get to the Captain. At the time, she had her nightstick across in front of her body. She screamed at people to stay back, which most of them did. For those that insisted on coming forward, Officer

Molillo put her hand up and tried to keep them back. She said that there was physical contact between her nightstick and some people, although she did not hit anyone with the nightstick. During this time, Officer Molillo never took out her pepper spray, although she thought other officers used pepper spray because it ended up irritating her throat. She was not sure for how long in total she was holding the crowd back. After holding back the crowd, arrests were made, and the officers left the vestibule. Officer Molillo was unsure which officers actually made the arrest.

Police Officer Thomas Pearce

Officer Pearce was interviewed at CCRB on September 5, 2001. On June 6, 2001, Officer Pearce was assigned to Patrol Borough Bronx Task Force.

At 8:30 PM, on June 10, 2001, Officer Pearce was mobilized to § 87(2)(b) and § 87(2)(b) from Orchard Beach. At the mobilization point, supervisors directed him and other Bronx Task Force officers to clear the streets, which the officers were to do by forming a line, going sidewalk to sidewalk, and proceeding down the street.

At certain points, the line went thirty to forty feet into side streets to clear crowds. When this happened, supervisors stood in back of the line, directing the officers. On this date, there were a number of supervisors, although there was not one who was specifically directing Officer Pearce. Officer Pearce's captain, Capt. Pilecki, was there, along with other captains whose names he did not know.

At one point in the night, Officer Pearce saw that one of the officers in the line was directed to make an arrest. Officer Pearce explained that this happened in front of an apartment building with a hallway leading to the back, although he was not sure if it was § 87(2)(b). Officer Pearce was not sure who gave the order to make the arrest, nor did he know to whom the order was given. Additionally, Officer Pearce did not know which officers he was with at this time. When the order came to make the arrest, Officer Pearce saw that there was a crowd of more than twenty people in front of the building, who were yelling and screaming. Officer Pearce said that this yelling and screaming was not directed at anyone in particular. At this time, Officer Pearce turned around to block any civilians from coming to where the arrest was being made. He did not know whether he was facing north, south, east, or west, but he remembered that the left side of his body was facing the building. He said that at the time, people were trying to get past him, and he was telling them verbally to stay back. He thought that he stood there for five minutes, and during this time he used no force. He did not see the arrest, and the only thing that he heard coming from behind him was screaming.

Capt. Michael Pilecki

Capt. Pilecki was interviewed at CCRB on December 5, 2001. On June 10, 2001, Capt. Pilecki was the commanding officer of Patrol Borough Bronx Task Force.

On June 10, 2001, Capt. McCormick of the 41st Precinct called a level one mobilization in the vicinity of § 87(2)(b) in the Bronx, and all Bronx Task Force officers responded to the scene automatically. Capt. Pilecki recounted that the crowd at the scene was rocking city buses, running into the street, and trying to incite motorists that were driving by.

When Capt. Pilecki arrived at the scene, he conferred with Capt. McCormick about the tactics that were going to be used to clear the crowd that was in the street. At one point, Capt. Pilecki saw a lieutenant, whose name he did not recall, walk into the street and immediately get surrounded by the crowd. Capt. Pilecki saw this happen from about a block and a half away. After the lieutenant was extracted from the crowd, Capt. Pilecki decided that a line would be formed across the street, along side of which there would be the lateral support of vans. He did not give any briefing to the officers and supervisors, but instead directed the supervisors to form the officers in lines. Capt. Pilecki then stood in

front of the line as it proceeded down § 87(2)(b), and said through his bullhorn “folks, please get on the sidewalk, clear the street”. The intent of this action was to get people back on to the sidewalks for their safety as well as the safety of passing motorists. Once the line passed § 87(2)(b) the first time, the crowd cleared the street, but ended up surging behind the line. This happened again after the line passed a second time.

Capt. Pilecki recalled that after the second sweep, while he was on § 87(2)(b) the crowd started to throw debris, bottles and rocks at the officers. After this, the Borough Commander, Chief Timlin, arrived at the scene. When Chief Timlin arrived, he directed the task force officers to again form a line across the street to clear the area. This time, Chief Timlin requested that officers also be placed at intersections to clear crowd spillover.

At one point, there was a group of individuals –Capt. Pilecki estimated that there were four or five– gathered in front of a building on the sidewalk, although Capt. Pilecki was unsure if this was on § 87(2)(b). Capt. Pilecki had received orders from Chief Timlin that the side streets also had to be cleared a half a block in either direction, which was the reason that this crowd had to be told to move. Capt. Pilecki approached this group of people, in particular a woman with a stroller, and told her that since they were clearing the street, she and the people around her needed to go inside. The response he received was “no, I live here. I’m not moving.” Capt. Pilecki again told the woman that since they were clearing the blocks, she needed to move. The woman and the civilians around her responded by again telling Capt. Pilecki that they were not moving, and that they live there. Capt. Pilecki then told them that if they did not move, they were going to be arrested. Since nobody moved after this, Capt. Pilecki directed one of his officers, whose identity he did not recall, to arrest the female with whom he had had the exchange. A man then jumped in front of the woman, and another officer grabbed this man. Capt. Pilecki did not believe this man was trying to attack him, but was instead trying to interfere with the arrest of the woman. After the first officer grabbed the man, Capt. Pilecki also grabbed him. While hanging on to the man, Capt. Pilecki was pepper-sprayed directly in the face. Capt. Pilecki then dropped to the ground, was helped up by another officer and led to an ambulance.

After being taken to the ambulance, Capt. Pilecki went back to the command where he irrigated his eyes and face and took a shower. He then returned to § 87(2)(b) and § 87(2)(b), although he was not sure at what time this was. By the time he returned, a level four mobilization had been called, and Chief Esposito was on the scene. Chief Timlin ordered that a line again be formed. Capt. Pilecki again led the line with the bullhorn and directed people to clear the streets. Accompanying him were Chief Timlin and Chief Esposito. No problems happened at this time, except for shots ringing out in the vicinity of § 87(2)(b) and § 87(2)(b). As time progressed, the situation calmed.

Lt. Steven Lutchka

Lt. Lutchka was interviewed on December 21, 2001, at CCRB. On June 10, 2001, Lt. Lutchka was partnered with Capt. Pilecki.

On June 10, 2001, Lt. Lutchka and Capt. Pilecki led the mobilization at § 87(2)(b) and § 87(2)(b). At one point during the mobilization, Lt. Lutchka saw a group of civilians in front of a building on a side street who were yelling and screaming. Lt. Lutchka added that arrests were being made at the location, and that he was also not sure how many officers were there. Many of the people were resisting arrest by pushing, screaming, and refusing to be handcuffed. Lt. Lutchka stated that he could not explain the force that was employed by any particular officer, although for the most part, they were trying to get the civilians to put their hands behind their back to be placed in handcuffs. During the course of this, civilians were pushed to the wall, and officers fell to the floor. Lt. Lutchka was also not sure what was being said specifically, although he knew that the officers were yelling at the people, telling people that they had to clear the street. Lt. Lutchka did not see any female officer push a baby carriage at this location.

He also did not see any officers using their nightsticks. The only time that he saw an officer use pepper spray was when Captain Pilecki was sprayed in the eyes. He thought this officer, whose identity he did not recall, was trying to pepper spray a civilian.

Sgt. Efrem Acosta

Sgt. Acosta was interviewed at CCRB on January 9, 2001. Sgt. Acosta is the training sergeant for Bronx Task Force.

On the evening of June 10, 2001, Sgt. Acosta was mobilized to § 87(2)(b) and § 87(2)(b). While on § 87(2)(b), Sgt. Acosta looked down the block onto a side street and saw a large crowd of approximately 20 people and 8 officers in front of a residential building. He thought that it was possibly § 87(2)(b) and he described the building as having a courtyard. In front of the building, Sgt. Acosta saw his Commanding Officer, Capt. Pilecki, on his knees grappling with a male civilian, trying to get his hands behind his back. Sgt. Acosta described the situation as being a pile up. Sgt. Acosta could not remember what the position of the perpetrator was at this time, and he was not sure if other officers aside from Capt. Pilecki were using physical force at this time.

When Sgt. Acosta approached the building, he told the officers around him to be careful of objects being hurled through the air, and not to go into the courtyard since that would be dangerous. When he approached the front of the building, he put himself between the officers handling the situation and the civilians standing around the entrance. He also told the civilians standing around that they had to move and disperse.

Sgt. Acosta, in an effort to subdue the civilian with who Capt. Pilecki was wrestling, pointed his pepper spray at him. At this time, he was bumped from behind, at which time he accidentally pepper sprayed Capt. Pilecki in the face. After the civilians were cleared away, Sgt. Acosta saw that there was a baby carriage with a baby in it on the sidewalk. Sgt. Acosta then yelled to another officer to move the carriage and get the baby away to keep it safe.

Police Officer Pedro Mendez

Officer Mendez was interviewed at CCRB on April 16, 2002. On June 10, 2001, Officer Mendez was assigned to Bronx Task Force, and was partnered with Police Officer Porteous.

On the day of June 10, 2001, Officer Mendez and Officer Porteous were assigned to a rooftop on § 87(2)(b), in order to watch events on the block throughout the day. Officer Porteous did not recall the address of this building. Towards the evening, a large crowd formed on § 87(2)(b), and both officer were called down and issued shields and riot gear. Following this, they marched in lines going up and down § 87(2)(b), in order to clear the crowd.

Officer Mendez stated that while he was on § 87(2)(b) walking towards § 87(2)(b), he saw a group of more than twenty civilians standing in front of a building. He described the civilians as being angry and unruly, and he said that they were yelling and cursing. Officer Mendez did not see any officer force used by any officers, nor did he hear any officer give any orders. He thought that at this time, there was an arrest being effected, and there was resistance by the civilian. Officer Mendez stated that he did not know who was effecting this arrest, but he did say that it was more than one officer. At this time, Officer Mendez proceeded past the crowd, in the direction of § 87(2)(b) and helped to form a barrier around the action the was taking place in front of the entrance to the building. Officer Mendez did not see what was happening in front of the building since his back was facing the civilians during the whole time. The only thing that he did was hold his shield up and tell people to stay back.

Later, Officer Mendez was on the prisoner bus since he had arrested a male teenager, whose name he forgot. At this time, there were numerous people who were asking if they could have their flexcuffs loosened. Officer Mendez told them there was nothing he could do since it is impossible to loosen flexcuffs. [in his interview, Officer Mendez explained that flexcuffs can only be cut, not adjusted]. § 87(2)(b) s allegation that he tightened her handcuffs was recounted to Officer Mendez. He denied the allegation, and said that he was on the prisoner bus, with one other officer and the driver, so he could take care of his prisoner. Officer Mendez stated that during the course of the evening, he never used his pepper spray.

Police Officer Daniel Panissidi

Officer Panissidi was interviewed at CCRB on May 9, 2002. On June 10, 2001, he was assigned to van 5964 with Sgt. Barounis, Officer Rivera and Officer Birmingham.

On June 10, 2001, Officer Panissidi was initially assigned to a detail at the Bronx Zoo, but was later dispatched to the 41 Precinct to quell a disorderly crowd. While at § 87(2)(b) and § 87(2)(b) Capt. Pilecki dispatched Officer Panissidi and the officers on his team to § 87(2)(b) Officer Panissidi put on his riot gear and went to the location. When he got near § 87(2)(b) he saw that there was a large crowd—between 60 to 150 people—that was spilling into the street and into the courtyard of § 87(2)(b) Officer Panissidi thought that residents could not make it in and out of the building. There were also officers gathered at the location who were telling the civilians to move back and disperse. When Officer Panissidi got closer, he also started telling civilians to get back. In response, people started cursing at him and the other officers, telling them that they did not have to get back. Officer Panissidi asserted that from that point on, the people who did not move were placed under arrest.

At around the time that he arrived at the location, Officer Panissidi witnessed Capt. Pilecki struggling with a civilian. Officer Panissidi was unable to remember any of the details of Capt. Pilecki's struggle. He could only say that he thought that he and the civilian were on their feet, and that they possibly could have fallen to the ground. Officer Panissidi also saw Capt. Pilecki get pepper sprayed. Following this, he personally led Capt. Pilecki to the ambulance for treatment. When asked if he saw any strollers by the entrance to the building, he said that there were lots of strollers around. He additionally stated that he never saw any officer ever push a stroller.

At one point while in front of § 87(2)(b) Officer Panissidi told a man that he identified as § 87(2)(b) to "disperse". When he first asked, § 87(2)(b) said "no". He then asked § 87(2)(b) again, and again he refused. At that point, Officer Panissidi decided that he was going to place him under arrest. Officer Panissidi did not recall if § 87(2)(b) resisted when he put him under arrest. He assumed that if he had resisted, he would have charged him with resisting arrest. Officer Panissidi emphatically stated that § 87(2)(b) did not run into the vestibule when he tried to place him under arrest. He said that he was already in the courtyard when he put him under arrest. When asked how he made it into the courtyard, he said that he walked since he was directed to clear the courtyard as well as the sidewalk. He also did not recall if Officer Sepulveda or any other officer assisted him in making the arrest. Officer Panissidi stated that no officer ever used force on him, and no officer ever struck him with a nightstick. Officer Panissidi handcuffed § 87(2)(b) and then brought him to the prisoner bus. Following being arrested, § 87(2)(b) never complained about being hit, or being hurt. Officer Panissidi recalled that he was rather mellow while on the prisoner bus, but he was also disappointed about being arrested. § 87(2)(b) was then brought to the 43 Precinct, where Officer Panissidi issued a summons to him for

§ 87(2)(a) 160.50

Police Officer Orlando Rivera

Officer Rivera was interviewed on May 13, 2002, at CCRB. On June 10, 2002, Officer Rivera was assigned to Patrol Borough Bronx Task Force, and was partnered with Sgt. Barounis, Officer Birmingham, Officer Cappella and Officer Panissidi.

Officer Rivera was not aware of any incident on § 87(2)(b) although he is aware of where § 87(2)(b) is. Officer Rivera initially stated that he did not recall issuing a summons to § 87(2)(b). After having a copy of the summons presented to him, he said that he issued that summons in the confines of the 43 Precinct. He said that the first time that he had visual contact with § 87(2)(b) was in the 43 Precinct. There, he was assigned the arrest of § 87(2)(b) by Sgt. Barounis. Officer Rivera stated that he did not recall ever going to § 87(2)(b) on June 10, 2001. Nor did he ever recall Capt. Pilecki directing him to go to that location to clear a crowd. He was not even aware of any altercation that took place at § 87(2)(b).

Medical Records

§ 87(2)(b)

§ 87(2)(b) sent a memo stating that there were no records of any treatment of § 87(2)(b).

§ 87(2)(b) § 87(2)(b) (enc. 35)

Ambulance Call Report

§ 87(2)(b) Chief Complaint is “My face burns”. The narrative reads that § 87(2)(b) was found prostrate on the sidewalk, and was complaining of being maced in the face. Her condition was listed as stable. She complained of burning to the eyes and face. § 87(2)(b) is quoted as saying “I was in the middle when the police sprayed the mace and it went on my face.”

Triage

It is written that EMS had stated that § 87(2)(b) had fainted when she saw her son get arrested. She was confused, but was also listed as alert and oriented. § 87(2)(b) was listed as crying and complaining of pain to both eyes. It was noted that there was redness to her face.

Physical

Stated that § 87(2)(b) had redness to both her face and neck. At 10:30 PM, irrigation of both face and neck was performed with saline solution. At 10:40 PM, the § 87(2)(b) was able to open her eyes and verbally expressed relief.

§ 87(2)(b) § 87(2)(b) s infant daughter) (enc. 37)

§ 87(2)(b) s daughter was listed as having been treated on § 87(2)(b), at 8:45 PM. § 87(2)(b) s chief complaint was that her daughter fell while in her stroller. The baby suffered no loss of consciousness as a result. Later, it is noted that the baby had fallen out of the stroller and bumped his head on the ground after police officers had been pushing. There is nothing listed as being wrong with the baby.

Court Information

Summons § 87(2)(b) (enc. 42)

Summons was issued to § 87(2)(b) on June 10, 2001, § 87(2)(a) 160.50. The issuing officer was Officer Orlando Rivera, of Patrol Borough Bronx Task Force. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Summons was issued to § 87(2)(b) on June 10, 2001, § 87(2)(a) 160.50. The issuing officer was Officer Daniel Pannissidi, of Patrol Borough Bronx Task Force. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Summons was issued to § 87(2)(b) on June 10, 2001, § 87(2)(a) 160.50. The issuing officer was Officer Elido Capella of Patrol Borough Bronx Task Force. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

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§ 87(2)(g)

[REDACTED]

Allegation B: Police Officer Marytheresa Milillo pushed the stroller belonging to § 87(2)(b)

§ 87(2)(g)

[REDACTED]

Allegation C: Police Officer Edwin Sepulveda used physical force against § 87(2)(b)
Allegation D: An officer used pepper spray against § 87(2)(b)

§ 87(2)(g)

[REDACTED]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

Allegation E: Capt. Michael Pilecki used physical force against § 87(2)(b)

Allegation F: An officer struck § 87(2)(b) **with a nightstick.**

Allegation G: An officer used pepper sprayed against § 87(2)(b)

§ 87(2)(g)

Allegation H: Police Officer Marytheresa Milillo used pepper spray against § 87(2)(b)

§ 87(2)(g)

Patrol Guide Procedure 212-95, which states “O.C. pepper spray may be used when a member reasonably believes it is necessary to effect an arrest of a resisting suspect... In many cases, pepper spray will reduce or eliminate the need for substantial physical force to effect an arrest or gain custody.” § 87(2)(g)

Allegation I: Police Officer Daniel Panissidi used physical force against § 87(2)(b)

Allegation J: Police Officer Edwin Sepulveda used physical force against § 87(2)(b)

Allegation K: Officers used physical force against § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g) [REDACTED] § 87(2)(b) [REDACTED]
[REDACTED] § 87(2)(b) [REDACTED]
[REDACTED] § 87(2)(b) [REDACTED].

Allegation L: Police Officer Pedro Mendez tightly handcuffed § 87(2)(b) [REDACTED]

§ 87(2)(g) [REDACTED] § 87(2)(b) [REDACTED]
[REDACTED]
[REDACTED] § 87(2)(b) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] § 87(2)(b) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] § 87(2)(b) [REDACTED]
[REDACTED].

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: